



CHAPTER cv.

An Act to confirm a Provisional Order under the Private A.D. 1915.
Legislation Procedure (Scotland) Act 1899 relating to
Glasgow Water. [28th October 1915.]

WHEREAS His Majesty's Secretary for Scotland has made
the Provisional Order set forth in the schedule hereunto
annexed under the provisions of the Private Legislation Pro- 62 & 63 Vict.
cedure (Scotland) Act 1899 and it is requisite that the said Order c. 47.
should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto Confirmation
annexed shall be and the same is hereby confirmed. of Order in
schedule.

2. This Act may be cited as the Glasgow Water Order Short title.
Confirmation Act 1915.

A.D. 1915.

SCHEDULE.

GLASGOW WATER.

*Provisional Order to authorise the Corporation of the city of
Glasgow to construct waterworks to borrow money
and for other purposes.*

WHEREAS by the Glasgow Corporation Waterworks Act 1855 the Corporation of the city of Glasgow (hereinafter referred to as "the Corporation" and "the city" respectively) were authorised to purchase and acquire the Glasgow Waterworks and the Gorbals Gravitation Waterworks and to introduce an additional supply of water from Loch Katrine and to supply with water the city and suburbs and districts and places adjacent:

And whereas the Corporation purchased and acquired the undertakings of the Company of Proprietors of the Glasgow Waterworks and the Gorbals Gravitation Water Company and the whole waterworks property rights and privileges of those companies were transferred to and vested in the Corporation:

And whereas further powers were conferred upon the Corporation by the Glasgow Water Acts 1855 to 1912 including the right to take water from Loch Arklet:

And whereas the Corporation are advised that the existing sources of supply and the existing waterworks will shortly prove inadequate to meet the requirements of consumers within the limits of supply:

And whereas it would be of local and public advantage if the Corporation were empowered to obtain an additional supply of water from the River Turk the Finglas Water and waters flowing into the same in the county of Perth and for that purpose to acquire the lands and construct and maintain the waterworks and other works connected therewith in this Order mentioned:

And whereas it is expedient that the further powers in this Order mentioned including power to borrow further moneys should be conferred on the Corporation:

[5 & 6 GEO. 5.] *Glasgow Water Order Confirmation* [Ch. cv.]
Act, 1915.

And whereas estimates have been prepared by the Corporation in relation to the following purposes in respect of which they are by this Order authorised to borrow money and such estimates are as follows:—

	£
For the purchase of lands and servitudes	- 40,000
For the dam or embankment aqueduct and	
works - - - - -	- 247,860
For other works - - - - -	- 39,140

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas plans and sections showing the lines and levels of the works authorised by this Order and also books of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Order were duly deposited with the principal sheriff clerk of the county of Perth and such plans sections and books of reference are hereinafter respectively referred to as the deposited plans sections and books of reference:

And whereas the purposes of this Order cannot be effected without an order of the Secretary for Scotland confirmed by Parliament under the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

PART I.

PRELIMINARY.

1. This Order may be cited as the Glasgow Water Order 1915.

Short title
and cita-
tions.

This Order and the Glasgow Loans Acts 1883 to 1914 may be cited together as the Glasgow Loans Acts 1883 to 1915.

This Order and the Glasgow Water Acts 1855 to 1912 may be cited together as the Glasgow Water Acts 1855 to 1915.

[Ch. cv.] *Glasgow Water Order Confirmation* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915.

This Order and the Glasgow Corporation Acts 1855 to 1914 and any other Act or Order passed during the present session of Parliament relating to the Corporation may be cited together as the Glasgow Corporation Acts 1855 to 1915.

Order
divided into
Parts.

2. This Order is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Water.

Part III.—Lands.

Part IV.—Miscellaneous.

Interpreta-
tion.

3. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in those Acts where applied to this Order the expression “the promoters of the undertaking” and “the company” respectively mean the Corporation and the expressions “the railway” and “the undertaking” mean the works by this Order authorised.

Further in-
terpretation.

4. The following words and expressions in this Order have the meanings hereby assigned to them (that is to say) :—

“Act of 1855” means the Glasgow Corporation Waterworks Act 1855;

“Act of 1885” means the Glasgow Corporation Waterworks Act 1885;

“City” means the city and royal burgh of Glasgow;

“Corporation” means the Corporation of the city of Glasgow;

“Sheriff” means the sheriff of the county of Perth and includes his substitutes;

“Water Acts” means the Glasgow Water Acts 1855 to 1912;

“Water undertaking” means the undertaking of the Corporation authorised by the Water Acts.

Incorporation
of Acts.

5. The following Acts so far as they are applicable to the purposes of and are not inconsistent with this Order are hereby (except where expressly varied by this Order) incorporated with this Order :—

(1) The Lands Clauses Acts :

(2) The Waterworks Clauses Acts 1847 and 1863 except— A.D. 1915.

(A) The words “with the consent in writing of
“ the owner or reputed owner of any such house
“ or of the agent of such owner” in section 44
(Undertakers to lay down communication pipes on
request of occupier and with the consent of
owners in houses of limited value) of the Water-
works Clauses Act 1847;

(B) Sections 75 to 82 of the Waterworks Clauses
Act 1847 with respect to the amount of profit to
be received by the undertakers when the water-
works are carried on for their benefit and section 83
relating to accounts:

(3) The Railways Clauses Consolidation (Scotland) Act 1845
Provided that nothing in this Order contained shall
be deemed to authorise the Corporation to take any
tolls in respect of the carriage of passengers or goods
on the railways authorised by Part II. of this Order
and in that Act for the purposes of that Part of
this Order the expression “the railway” means the
works authorised by that Part and the expression
“the centre line of the railway” means the boundaries
of the reservoir and the centre line of such other
works:

(4) This Order shall be deemed to be a special Act within
the meaning of those Acts.

PART II.

WATER.

6. Subject to the provisions of this Order the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the works hereinafter described (that is to say):—

Power to
construct
works.

(1) An impounding reservoir to be formed by means of a
dam or embankment 282 yards or thereabouts in
length across the River Turk at a point on the said
river 1,117 yards or thereabouts measured in a straight
line south from the southmost corner of the dwelling-
house of Duart such reservoir extending from the
said dam or embankment in a north-westerly direction

[Ch. cv.] *Glasgow Water Order Confirmation* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915.

to and terminating at a point on the Finglas Water 3,766 yards or thereabouts measured in a straight line in a north-westerly direction from the point where the said dam or embankment crosses the said River Turk which point of termination is at or near the place where the word "Ford" is marked on the Ordnance map scale 6 inches to the mile Sheet No. cxiii. S.E. second edition 1901 :

- (2) An aqueduct for the purpose of conveying the water from the aforesaid reservoir to Loch Katrine commencing at a point in the bed of the said River Turk immediately south of the said dam or embankment and proceeding thence in a westerly direction for a distance of 2 miles 3 furlongs 60 yards or thereabouts and terminating on the shore of Loch Katrine at or near a point 220 yards or thereabouts west of the place where the stream called Allt na Cailliche enters that loch :
- (3) A railway (No. 1) 1 furlong 46 yards or thereabouts in length commencing by a junction with the Callander and Oban Railway at a point thereon 133 yards or thereabouts measured along the said railway in a south-easterly direction from the bridge carrying the public road from Kilmahog to Trossachs over the said Callander and Oban Railway and terminating at a point in the inclosure No. 62 on the Ordnance map scale $\frac{1}{2500}$ Sheet No. cxxiii. 4 second edition 1900 100 yards or thereabouts measured in a north-easterly direction from the south-west corner of the said inclosure together with all necessary and convenient rails junctions turntables embankments walls works and apparatus connected therewith :
- (4) A railway (No. 2) 5 miles 7 furlongs 132 yards or thereabouts in length commencing at or near the termination of Railway No. 1 above described and terminating at the said dam or embankment together with all necessary and convenient rails junctions turntables embankments walls works and apparatus connected therewith :
- (5) A road in substitution of part of the private road leading from the village of Brig o' Turk to Duart com-

mencing at a point on the said private road 650 yards or thereabouts measured along that road in a north-westerly direction from the intersection of the line of the north-west gable of Brig o' Turk school with that road and terminating at or near the east end of the said dam or embankment: A.D. 1915.

- (6) An alteration of the line and level of the public road leading from Trossachs to Strone school-house commencing at a point on the said public road 140 yards or thereabouts measured along the said road in a westerly direction from the point where the stream called Allt na Cailliche crosses that road and terminating on the said public road 218 yards or thereabouts measured in a westerly direction from the point of commencement.

The said works will be wholly situate in the parish of Callander and the county of Perth.

In addition to the foregoing works the Corporation may on the lands acquired for the purposes of this Order make and maintain all necessary and convenient buildings works machinery and apparatus connected with the hereinbefore described works or any of them or incidental thereto or necessary for inspecting conducting controlling cleansing repairing maintaining improving or managing the same but nothing in this section shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

7. For the protection of the western district committee of the county council of the county of Perth (hereinafter referred to as "the district committee") the following provisions shall unless otherwise agreed upon between the Corporation and the district committee have effect (that is to say):—

For protection of western district committee of county council of Perth.

- (1) The Corporation may notwithstanding anything in any Act order or regulation to the contrary carry and haul by traction engine or other mechanical haulage over that part of the road from Callander to Trossachs which is situated between Callander and Brig o' Turk materials to be used by the Corporation in the construction of the works or any of them by this Order authorised and other traffic in connection therewith. Provided that such traffic is confined to the period

[Ch. cv.] *Glasgow Water Order Confirmation* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915.

for outward traffic starting from Callander from eight o'clock in the evening till six o'clock in the morning of the following day and for homeward traffic from ten o'clock in the evening till six o'clock in the morning of the following day:

- (2) The Corporation shall pay to the county treasurer for the credit of the district committee the sum of five-pence per ton per mile for each ton of such materials so carried or hauled by traction engine or other mechanical haulage and the sum of threepence per ton per mile for each ton of such materials so carried or hauled in carts and wagons drawn by horses and the Corporation or their contractor shall at the end of each month during which such materials are so carried or hauled supply to the surveyor of the district committee a detailed statement of such materials and the distance which they have been so carried or hauled during such month over the aforesaid road together with the railway weighnotes or other reasonable evidence of such quantities:
- (3) All payments made by the Corporation for the credit of the district committee in pursuance of the provisions of the immediately preceding subsection shall be in full satisfaction of any claim such committee might have under section 57 (Power of road authority to recover expenses of extraordinary traffic) of the Roads and Bridges (Scotland) Act 1878 and the aforesaid road shall continue to be maintained in repair by and at the expense of the district committee:
- (4) In the event of the Corporation or their contractor carrying or hauling such materials and other traffic as aforesaid by traction engines or other mechanical haulage over the said part of the road from Callander to Trossachs the Corporation shall repair to the satisfaction of the district committee any culverts and bridges belonging to or maintained by the district committee or belonging to or maintained by any other person or persons which shall have been proved to have been damaged by them and also any extraordinary damage as the same shall failing agreement be defined by arbitration in manner in this section

hereinafter provided to the said part of such road caused by the use of such traction engines or mechanical haulage but the Corporation shall not be liable for any damage to such part of such road due to ordinary wear and tear : A.D. 1915.

- (5) The Corporation when constructing Railway No. 2 by this Order authorised—

(A) shall erect to the reasonable satisfaction of the district committee at Coilevraun a fence about 300 yards in length on the south side of the road from Callander to Trossachs between such points as may be fixed by the road surveyor to the district committee such fence to be 3 feet 6 inches in height above the surface of the ground and to be constructed of iron with five bars and supported by iron standards set in concrete 4 feet apart ;

(B) shall not alter the line or level of the tramway from Coilevraun Quarry :

- (6) Notwithstanding anything shown on the deposited plans the alteration of the line and level of the public road leading from Trossachs to Strone school-house by this Order authorised shall be carried out in such manner as may be agreed between the road surveyor to the district committee and the engineer for the Corporation or failing agreement as shall be settled by arbitration in manner in this section hereinafter provided :

- (7) The Corporation during the construction of the impounding reservoir by this Order authorised and the dam or embankment connected therewith shall maintain an adequate supply of water not exceeding two thousand gallons per day to the village of Brig o' Turk and if necessary lay down a water pipe from a point above the said dam or embankment to such point in or near the said village as may be agreed between the Corporation and the district committee or failing agreement as shall be settled by arbitration in manner in this section hereinafter provided :

- (8) The district committee shall on giving to the Corporation one year's notice at any time from and after the date

[Ch. cv.] *Glasgow Water Order Confirmation* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915.

when the Corporation commence to supply water to their area of supply from the works by this Order authorised be entitled to receive from the Corporation a supply of water in bulk not exceeding two hundred and fifty thousand gallons per day from such points on the Corporation aqueducts as may be reasonably suitable for affording such a supply and as may be agreed upon or failing agreement as shall be settled by arbitration in manner in this section hereinafter provided :

- (9) The Corporation shall on the expiration of such notice commence and continue to afford such supply in consideration of the payment to them by the district committee of such sum per one thousand gallons as may be agreed upon or failing agreement as shall be settled by arbitration in manner in this section hereinafter provided :
- (10) Subject as hereinafter in this section provided the district committee shall at their own expense lay and maintain a main or mains capable of receiving the aforesaid supply of water and shall take all water to be supplied under this section through the said main or mains :
- (11) The junction of the said main or mains of the district committee with the waterworks aqueducts or pipes of the Corporation and so much of such main or mains as shall be situated on lands or wayleaves belonging to the Corporation and the meter for measuring the water supplied to the district committee and the meter-house and the land on which such meter-house is constructed shall be constructed and provided by the Corporation at the expense and to the reasonable satisfaction of the district committee and such junction and so much of such main or mains as aforesaid and such meter and meter-house shall be maintained in good and efficient repair by the Corporation at the expense of the district committee :
- (12) The said junction and so much of such main or mains as aforesaid and such meter and meter-house shall be constructed in such position on lands or wayleaves belonging to the Corporation as the Corporation think

fit and shall be under the sole and exclusive control of the Corporation. Such junction main or mains meter and meter-house shall be open at all reasonable times to inspection by any person to be appointed in writing by the district committee: A.D. 1915.

- (13) Any difference between the Corporation and the district committee in connection with anything contained in this section shall failing agreement be determined by an arbiter to be mutually agreed upon or failing agreement to be appointed by the Board of Trade on the request of either party.

8. For the protection of the Right Honourable Morton Gray Earl of Moray or other the owner or owners for the time being of his or their estates (in this section referred to as "the estate") and lands in the parish of Callander and county of Perth or of any part or parts thereof (all of whom are in this section included in the expression "the owner") the following provisions shall notwithstanding anything in this Order contained or shown upon the deposited plans and sections and unless otherwise agreed between the owner and the Corporation apply and have effect (that is to say):— For protection of Earl of Moray.

- (1) The Corporation shall not under the provisions of this Order except by agreement purchase and take any lands or property or interests therein or thereover belonging to the owner which may be required for the purposes of this Order other than the lands property and interests therein or thereover specified or referred to in paragraphs (A) and (c) of this subsection nor require from the owner any discharge of his rights as hereditary keeper of any part or parts of the royal forest of Glenfinlas other than the part or parts thereof specified or referred to in paragraph (B) of this subsection but the Corporation—

(A) may at any time prior to Whitsunday one thousand nine hundred and seventeen but not later (i) acquire and the owner shall sell to the Corporation the lands and property of the owner coloured red on the plan (hereinafter in this section referred to as "Plan No. 1") signed in duplicate by John R. Sutherland civil engineer on behalf of the Corporation and by Carter & Wilson civil

A.D. 1915.

engineers on behalf of the owner and dated the twenty-ninth day of June one thousand nine hundred and fifteen and (ii) acquire and the owner shall grant to the Corporation a perpetual servitude of wayleave for the aqueduct (Work No. 2) by this Order authorised in and through the strip of land coloured brown on Plan No. 1;

(B) may require and the owner with the consent of the Commissioners of Woods shall grant a discharge of his rights as hereditary keeper of the said royal forest of Glenfinlas so far as the same extend over the part or parts thereof edged blue on the Plan No. 1;

(c) may for the purposes of the works numbered (3) (4) and (5) in the section of this Order whereof the marginal note is "Power to construct works" and of the works connected therewith in lieu of acquiring the lands on, in or over which such works will be situate acquire for the purposes thereof along the lines marked upon the Plan No. 2 signed in duplicate by John R. Sutherland civil engineer on behalf of the Corporation and by Carter & Wilson civil engineers on behalf of the owner and dated the twenty-ninth day of June one thousand nine hundred and fifteen such wayleaves servitudes leases or other rights as may be reasonably necessary and the owner shall grant to the Corporation such wayleaves servitudes and other rights accordingly:

- (2) The compensation to be paid to the owner by the Corporation for the said lands wayleaves servitudes leases or other rights therein shall failing agreement be determined in manner provided by the Lands Clauses Acts with respect to the acquisition of lands otherwise than by agreement and such wayleaves servitudes leases or other rights shall be deemed to be lands so far as regards the proceedings for the acquisition thereof and also for the purposes of any arbitration and the sections of this Order whereof the marginal notes are "Compensation to be settled by single arbiter" and "Costs of arbitration in certain

cases" shall not apply The Corporation shall in case they shall for any purpose enter upon any lands of the owner prior to Whitsunday one thousand nine hundred and seventeen pay to the owner interest at the rate of five per centum per annum upon the sum fixed by agreement or arbitration as aforesaid for such compensation as from the date on which the Corporation or any person authorised by them shall first enter upon any lands of the owner (other than for the purpose of surveying and taking levels probing and boring by hand on the site of the dam or embankment (Work No. 1) by this Order authorised and determining the lines of the intended works) until Whitsunday one thousand nine hundred and seventeen: A.D. 1915.

- (3) In constructing on lands of or acquired from the owner any of the works by this Order authorised and in laying down any pipes conduits and any ancillary or subsidiary works the Corporation shall not interfere with any buildings on or the water supplies or drainage of any part of the estate without first making provision for the restoration of the same to the reasonable satisfaction of the owner and shall not except with the consent of the owner erect any buildings (other than boathouses and temporary buildings or shelters for workmen and material) elsewhere than on the lands edged green on Plan No. 1:
- (4) Notwithstanding anything shown upon the deposited plans and sections the Corporation shall construct the road (Work No. 5) by this Order authorised on such lines and levels as the owner may reasonably require and shall also if required by the owner construct at any time and at their own expense to the reasonable satisfaction of the owner and of such width and on such lines and levels as the owner may reasonably require a continuation of the said road (Work No. 5) from the termination of that work to a point not less than 750 yards in any direction on the owner's lands beyond the point where the eastern boundary of the land to be acquired intersects the line of the Casaig Burn Such roads and the part of the private road leading from the public road at the village of Brig

A.D. 1915.

o' Turk to Duart between such public road and the commencement of the said road (Work No. 5) shall be maintained by the Corporation at their own expense to the reasonable satisfaction of the owner until the same are taken over by the road authority within whose jurisdiction the same are situated :

- (5) In the event of the owner requiring the Corporation to construct the continuation of the said road (Work No. 5) referred to in the immediately preceding subsection of this section the owner shall provide free of charge or other consideration the land required for the site of the said continuation of the road except in so far as the same may be upon lands acquired or to be acquired by the Corporation and the Corporation shall be entitled to take and use free of all costs for the construction of the said continuation of the road any materials on the lands of the owner on or near the site of such road :
- (6) If in constructing the works by this Order authorised the Corporation interfere with any private roads on the lands of the owner they shall restore the same to the reasonable satisfaction of the owner and the headway of any bridges over any such roads shall in no case be less than 12 feet :
- (7) In lieu of constructing the Railways Nos. 1 and 2 by this Order authorised or any part or parts thereof the Corporation may construct and maintain an aerial ropeway in such line and at such levels as may be agreed between the Corporation and the owner and in that event the owner shall grant to the Corporation a wayleave for such ropeway so far as it will be situate on the estate at such annual rent or otherwise as may be agreed or settled in manner provided by subsection (2) of this section :
- (8) Notwithstanding anything contained in the section of this Order whereof the marginal note is "As to fencing" the Corporation shall fence to the reasonable satisfaction of the owner such parts of the said Railways Nos. 1 and 2 and of the said aerial ropeway as the case may be as the owner may reasonably require in so far as the same are situate on the lands of the owner :

- (9) Within one year after the completion of the works by this Order authorised the Corporation shall dismantle and remove the said Railways Nos. 1 and 2 and the the said aerial ropeway as the case may be so far as situate on the lands of the owner and the Corporation shall restore the site thereof to its former state and condition and shall on the completion of such restoration convey to the owner free of charge such site or so much thereof as shall have been acquired by the Corporation from the owner Provided that the Corporation shall not be required to fill up cuttings or remove embankments in cases where the amenity of the estate is not in the opinion of the owner interfered with and where danger will not be caused to persons or animals by such cuttings and embankments being permitted to remain : A.D. 1915.
- (10) No buildings except as aftermentioned shall from the date of the passing of the Act confirming this Order be erected by the owner in the drainage or catchment area of the reservoir (Work No. 1) by this Order authorised without the consent of the Corporation but the owner may so far as the Corporation is concerned erect use and maintain for the use of the owner and the lessees and tenants of the owner in such area a suitable shooting lodge with gardens offices and the usual works and conveniences connected therewith together with suitable cottages not exceeding five in number and offices for keepers and watchers and also such buildings cottages not exceeding four in number and other erections as may be necessary or expedient for or be incidental to (A) the afforestation and (B) the pasturing of the lands within the said drainage or catchment area Provided that the owner shall provide and maintain on and in connection with such buildings cottages and other erections an installation to the reasonable satisfaction of the Corporation for the efficient collection and treatment of the sewage and drainage thereof and therefrom Provided further that if it shall be deemed desirable by the owner to carry off such sewage and drainage from such area the Cor-

A.D. 1915.

poration shall allow free of charge a wayleave for any necessary pipe or pipes for that purpose through the land to be acquired by the Corporation :

(11) The owner and his lessees and tenants shall be entitled to take and use so much of the water arising within or flowing through the said drainage or catchment area as shall be necessary for all buildings which may be erected on the estate in the said area and for estate and other private purposes of the owner and his lessees and tenants in the said area without the Corporation being entitled to any payment or compensation therefor The Corporation shall also give free of charge to the owner and his tenants and vassals in Glenfinlas below the dam or embankment of the reservoir (Work No. 1) by this Order authorised a continuous supply of water and for such purpose shall at their own expense and to the reasonable satisfaction of the owner provide and maintain a cast-iron main pipe of four inches diameter from the said reservoir (Work No. 1) to a point in or near the village of Brig o' Turk to be selected by the owner and shall at such point provide and maintain to the like satisfaction and keep filled by means of the said main pipe a tank of sufficient capacity to afford such a supply of water to the said village and to Dundarroch House and the Corporation shall permit the owner to make such connections with the said main pipe and tank as the owner may consider necessary at such point or points as he may select Provided that such connections shall be made at the sight and to the reasonable satisfaction of an inspector or officer of the Corporation :

(12) In exercising the powers of the section of this Order whereof the marginal note is "Prevention of fouling of water" so far as affecting the estate of the owner the Corporation shall cause as little inconvenience as practicable to the owner and any inspector or officer of the Corporation entering on the estate in pursuance of the powers of that section shall if required by

the owner or any representative of the owner duly authorised in that behalf produce to the owner or such representative the authority of the Corporation or of any official deputed for that purpose by the Corporation : A.D. 1915.

- (13) (A) Subject to the right of fishing hereinafter secured to the Corporation the owner shall have the sole and exclusive right and liberty of shooting and fishing on all lands now belonging to him and which the Corporation may acquire from him under the powers of this Order for the purposes of the reservoir (Work No. 1) by this Order authorised together with the land edged blue on Plan No. 1 and the owner and the lessees or tenants of his shooting and fishing rights or any person having the written permission or authority of the owner or the said lessees or tenants shall save as aforesaid be exclusively entitled to exercise the right to shoot over and upon and to fish in all waters impounded in the said reservoir (Work No. 1) and reasonably to stock and restock the said waters with fish and the owner and the said lessees or tenants shall also be entitled to erect and maintain a boathouse or boathouses on such part or parts of the lands acquired from the owner as may be convenient and also the right and liberty to place and use boats for fishing on such reservoir or to fish from such place on the banks thereof as the owner or the said lessees or tenants or any persons having written permission or authority as aforesaid shall see fit and to pass and repass to and from any such boat-house or boat Provided always that in the exercise of the powers in this subsection mentioned the owner and the said lessees or tenants or any person having authority as aforesaid shall have liberty of access to the said reservoir (Work No. 1) and the banks thereof at any point thereon but shall not injure any part of the embankment thereof or the works connected therewith or interfere with the construction or maintenance of such works or do any act whereby the water therein will or may be fouled :

A.D. 1915.
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(B) Notwithstanding anything in paragraph (A) of this subsection the Corporation shall have full power and liberty by themselves their manager and servants to keep and use a barge and two boats one of which may be mechanically propelled upon the said reservoir (Work No. 1) for the purpose of examining inspecting repairing and maintaining the same and the embankments and banks thereof at all times they may think proper but no other person shall be entitled to keep or use boats on the said reservoir (Work No. 1) and the members of the Corporation for the time being and such of their officers as may be approved by the owner shall also have full right and liberty to fish with rod and line in the said reservoir (Work No. 1) and for that purpose to keep and use a rowing boat thereon :

- (14) The owner his lessees and tenants shall be entitled to use for the purposes of pedestrian and vehicular traffic the roadway to be constructed by the Corporation and which the Corporation shall construct on the top of the dam or embankment of the reservoir (Work No. 1) by this Order authorised :
- (15) The Corporation shall afford to the owner in one of their buildings at the eastern end of the dam or embankment of the reservoir (Work No. 1) by this Order authorised suitable accommodation for a garage or stable :
- (16) Any buildings to be erected by the Corporation on lands acquired by the Corporation from the owner shall be erected in accordance with plans and specifications to be submitted to and approved of by the owner so far as regards their effect on the amenity of the estate and in the event of the owner failing to express his approval or disapproval of the same within twenty-eight days after the said plans and specifications have been received by him he shall be deemed to have approved the same and the Corporation shall plant and keep planted to the satisfaction of the owner trees at such points and for such distances and width on the margin of the reservoir (Work No. 1) by this Order authorised as the owner may reasonably select :

- (17) The provisions of the section of this Order whereof the marginal note is "Owners may be required to sell parts only of property" shall not apply to or in the case of any land houses or other buildings of the owner: A.D. 1915.
- (18) Before offering for sale to others any lands acquired by the Corporation from the owner for the purposes of this Order the Corporation shall offer the same to the owner and the price to be paid by the owner to the Corporation therefor shall failing agreement be determined by arbitration as hereinafter in this section provided:
- (19) The Corporation shall from time to time pay to the owner on demand the reasonable cost of the employment by him of not more than two additional keepers or watchers for the protection of the game and for the prevention of persons trespassing on the estate near any of the works of the Corporation during the construction or repair of the same:
- (20) The Corporation shall not during the construction repair and maintenance of any works on the lands of the owner allow (without the consent in writing of the owner) any person employed on such works to keep any dog other than a watch dog at each permanent dwelling-house and shall use their best endeavours to prevent poaching by any such person on the estate:
- (21) During and after the construction of the works by this Order authorised the Corporation shall free and relieve and shall indemnify the owner and his tenants from loss damages and any claims which may be caused or arise by the construction or through the failure of any of such works or the works connected therewith:
- (22) Any difference arising between the Corporation and the owner under this section (other than differences to which the provisions of the Lands Clauses Acts apply) shall be determined by a single arbiter to be agreed on or failing agreement by an arbiter to be appointed by the sheriff on the application of either party.

[Ch. cv.] *Glasgow Water Order Confirmation* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915.

Reservoir not to
be used for
skating &c.

9. The reservoir (Work No. 1) by this Order authorised shall not be used for the purposes of skating or curling.

For protec-
tion of Cale-
donian and
Callander
and Oban
Railway
Companies.

10. Whereas by the section of this Order of which the marginal note is "Power to construct works" the Corporation are authorised to make and maintain the railways therein described And whereas the Callander and Oban Railway (in this section called "the Oban Railway") with which the said Railway No. 1 of the Corporation (in this section called "the railway") is to connect belongs to the Callander and Oban Railway Company (in this section referred to as "the Oban Company") and is worked and maintained by the Caledonian Railway Company Therefore the following provisions for the protection of the Caledonian Railway Company and the Oban Company (in this section referred to as "the railway companies") shall unless otherwise agreed between the Corporation and the railway companies apply and have effect (that is to say) :—

(1) Before commencing the construction of the railway or any of the works or operations in connection therewith under the powers conferred upon them by this Order affecting the Oban Railway or other property belonging to or occupied by the railway companies or works belonging to or maintainable or repairable by them the Corporation shall submit to the railway companies plans sections working drawings and specifications thereof showing the manner in which the railway and such works or operations are to be carried out for approval of the railway companies which approval shall not be unreasonably withheld Provided that if the railway companies do not intimate their approval or disapproval of the said plans sections working drawings and specifications within twenty-eight days after the same have been submitted to them they shall be deemed to have approved the same :

(2) The railway and works shall be constructed carried on and completed by the Corporation in conformity only with the plans sections working drawings and specifications so approved or deemed to have been approved by the railway companies at the sole risk and cost of the Corporation and at the sight and to

the satisfaction of the railway companies and all such works so long as they exist shall be maintained repaired or renewed by the Corporation at the sole cost of the Corporation at the sight and to the satisfaction of the railway companies and the Corporation shall execute at their own cost any additional works which the Board of Trade may require to be executed as a result of their inspection of the railway before the same is authorised to be opened for traffic : A.D. 1915.

- (3) The Corporation shall if required by the Oban Company carry the junction of the railway with the Oban Railway close up to the bridge which carries the public road over the Oban Railway about 135 yards westward of the point of commencement of the railway as shown on the deposited plans so as to permit of proper siding accommodation being laid for dealing with traffic :
- (4) The Corporation shall not without the previous consent in writing of the railway companies enter upon alter or interfere with the Oban Railway or any land or other property belonging to or occupied by the railway companies or maintainable or repairable by them but the Corporation may acquire and the Oban Company shall grant to the Corporation such temporary servitudes only in and over any land or other property of the Oban Company as may be necessary for the construction and maintenance of the railway during the period provided by the section of this Order the marginal note of which is "User and discontinuance of railways" :
- (5) The Corporation shall subsequent to the approval of the plans sections working drawings and specifications as in this section provided give twenty-eight days previous notice in writing to the railway companies of their intention to commence any of the works by this Order authorised affecting the land property or works of the Oban Company and such works shall be completed with all reasonable despatch :
- (6) The Corporation shall provide construct and maintain at their own cost on land to be provided by them all to the satisfaction of the railway companies at a

A.D. 1915.

point at or near the said junction of the railway to be fixed by the railway companies sufficient and convenient sidings as storage sidings and exchange sidings for and in connection with the working of traffic between the Oban Railway and the railway and the plans sections working drawings and specifications thereof shall be first submitted for approval of the railway companies :

- (7) The railway companies may in their discretion from time to time erect maintain and alter such signal cabins signals and conveniences as may be requisite in connection with the said junction of the railway with the Oban Railway and may also provide a tablet station in connection with such junction with all proper conveniences either on their own land or on land belonging to or provided by the Corporation at their own expense and may appoint and remove such signalmen watchmen and other persons as may be necessary for working the same and for the prevention of danger to detention of or interference with the traffic on the Oban Railway at and near the said junction and the railway companies shall have exclusive control of the working and management of such signal cabins signals and conveniences wherever situate and of such signalmen watchmen and other persons in this subsection mentioned and the expense of erecting altering maintaining and working such signal cabins signals and conveniences shall be repaid by the Corporation to the railway companies :
- (8) Should it be necessary in the opinion of the railway companies in consequence of the construction of any of the works of the Corporation for the railway companies at any time permanently or temporarily to alter or to remove the signal cabins signalling apparatus telegraph posts and wires or any of them on or connected with the Oban Railway at or near to the said junction the Corporation shall bear and on demand pay to the railway companies the expense of and connected with such alteration and removal and of restoring the same to their former position or placing them in a different position or of substituting other necessary signalling apparatus telegraph posts and wires or other conveniences therefor :

(9) The Corporation shall pay to and reimburse the railway companies in all reasonable costs charges and expenses which they may incur in connection with the approval of any plans sections working drawings and specifications which may be submitted to them for approval as aforesaid or in connection with the construction of the works by this Order authorised affecting the Oban Railway or other works or property of the railway companies or the subsequent maintenance use alteration replacing or repair thereof including (without prejudice to the said generality) any expenses which the railway companies may reasonably incur in connection with the employment of inspectors signalmen watchmen and others and for superintendence of the said works during construction and for all extra precautions for the safety and working of their traffic or protection of their property on account of the execution maintenance use alteration replacing or repair of the said works: A.D. 1915.

(10) All the works and operations of the Corporation under this Order including maintenance alteration replacing or repair shall in so far as the same affect the Oban Railway or other works or property of the railway companies be constructed executed and completed by the Corporation at their sole risk and cost and so as not to injure or alter the Oban Railway or any of the other works or property of the railway companies in or about which the said works are to be executed or the electric telephonic or signalling apparatus belonging to or maintainable by the railway companies and should any danger injury interruption impediment or interference to of or with the passage or conduct of traffic on the Oban Railway be caused by or be in any way owing to the works or operations of the Corporation or the failure of or defect in any of the said works or operations of the Corporation or be reasonably apprehended in connection therewith the Corporation shall free of all expense to the railway companies execute and do all such works as may be necessary to restore remove or prevent such danger injury interruption or impediment as the case may be or the railway companies in their option and for

[Ch. cv.] *Glasgow Water Order Confirmation* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915.
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any of these purposes may enter upon the works or property of the Corporation and execute and do all such works and things as may be necessary to restore remove or prevent such danger injury interruption or impediment and the Corporation shall on demand repay to the railway companies all reasonable costs and expenses incurred by them in connection therewith:

- (11) The Corporation shall pay all costs and expenses and shall make reasonable compensation to the railway companies or either of them for all loss or damage including loss of traffic caused by such works and operations interruption impediment or interference to or with the Oban Railway and interference with the lands or other property owned maintained or repairable or occupied by the railway companies or either of them The Corporation shall also indemnify the railway companies for all damages or compensation which may be recovered from them by reason of such interruption impediment or interference or by reason of any accident so far as such interruption impediment interference or accident shall have been occasioned by or through the acts or default of the Corporation or those for whom they are responsible:
- (12) Nothing in this Order contained or which may be done in pursuance thereof shall prevent the railway companies from maintaining repairing and whenever in their discretion thought necessary renewing deviating widening enlarging altering or reconstructing the Oban Railway or works in connection therewith without interference on the part of the Corporation and without incurring any liability to the Corporation or to any person using the works by this Order authorised for any loss injury damage or expense which may arise from such maintenance repair deviation alteration or reconstruction:
- (13) In the event of the railway companies exercising any of the powers referred to in the immediately preceding subsection of this section they shall do so in such manner as to cause as little damage and interference as practicable to and with the said works by this Order authorised and shall give (except in cases of emergency in which cases notice shall be given

as soon as reasonably possible) fourteen days' previous notice in writing to the Corporation before commencing any such operations as may affect any of the said works by this Order authorised Provided that any extra expense which the railway companies may incur in such reconstruction maintenance repair renewal deviation widening enlarging alteration or reconstruction by reason of the existence of the said works by this Order authorised and relative works shall be paid by the Corporation :

A.D. 1915.

- (14) On the expiry of the period referred to in the section of this Order the marginal note of which is "User and discontinuance of railways" the Corporation shall lift and remove the whole materials and appliances forming the junction and the railway and works connected therewith so far as situated on the property belonging to or occupied by the railway companies and restore the said property to its former condition The said work of removal and restoration shall be carried out by the Corporation at their expense and at the sight and to the satisfaction of the railway companies :
- (15) Any question or difference between the Corporation and the railway companies or either of them arising under this section shall be determined by an arbiter to be appointed failing agreement by the Board of Trade on the application of any of the parties.

11. In the construction of the works authorised by this Order the Corporation may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards Provided as follows:—

Limits of
deviation.

- (1) The Corporation shall not construct the dam or embankment of the reservoir (Work No. 1) by this Order authorised of a greater height above the general surface of the ground than that shown on the deposited sections and five feet in addition :
- (2) Except for the purpose of crossing over a stream no part of the aqueduct (Work No. 2) by this Order

[Ch. cv.] *Glasgow Water Order Confirmation* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915.

authorised shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections :

- (3) The Corporation shall not in constructing Railway No. 2 by this Order authorised where it crosses over the road from Kilmahog to Trossachs deviate downwards so as to reduce the headway of the bridge carrying that railway over that road below fifteen feet.

Power to
stop up road.

12.—(1) Subject to the provisions of this Order the Corporation may stop up so much of the public road leading from Trossachs to Strone school-house as will be rendered unnecessary by the alteration of the line and level of such road by this Order authorised.

(2) Except as in this section otherwise provided the Corporation shall not stop up the portion of the road hereinbefore described until the alteration of the line and level thereof by this Order authorised is completed to the satisfaction of the road authority and is open for public use or in case of difference between the Corporation and the road authority until the sheriff shall have certified that the alteration of the line and level of the said road has been completed to his satisfaction and is open for public use. Provided also that before applying to the sheriff for his certificate the Corporation shall give to the road authority seven days' notice in writing of their intention to apply for the same.

(3) Notwithstanding anything contained in the immediately preceding subsection of this section the Corporation may stop up the portion of the road hereinbefore described or some part or parts thereof if they provide to the satisfaction of the road authority a temporary road in lieu of the said road or parts thereof the line and level whereof are altered but the Corporation shall complete in accordance with the provisions of the immediately preceding subsection of this section the alteration of the line and level of the said road and thereon open the road for traffic within the period limited for the completion of the works by this Order authorised.

(4) As from the completion of the alteration of the line and level of the said road to the satisfaction of the road authority or as from the date of the said certificate (as the case may be)

all rights of way over or along the existing portions of road as will be rendered unnecessary by the said alteration shall be extinguished and the Corporation may (subject to the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to mines lying under or near the railway) appropriate and use for the purposes of the water undertaking the site of the portions of the road stopped up as far as the same is bounded on both sides by lands of the Corporation and the site of such portions of road shall be vested in them. A.D. 1915.

(5) The Corporation shall make full compensation to all persons interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

13. The portion of road as altered in line and level by this Order authorised shall be maintained in repair by and at the cost of the Corporation for twelve months as from the date of the completion thereof to the satisfaction of the road authority or as from the date of the certificate of the sheriff (as the case may be) and from and after the expiration of the said twelve months such portion of road shall be maintained in repair by and at the expense of the road authority of the district in which the same is situated. Maintenance
of altered
road.

14. The Corporation may in the construction of Railway No. 2 by this Order authorised carry the same with a single line only whilst that railway shall consist of a single line and afterwards with a double line only across and on the level of the road leading from Gartchonzie Bridge to the road from Kilmahog to Trossachs. Power to
cross road on
the level.

15.—(1) The Board of Trade at any time after the completion of Railway No. 2 by this Order authorised may if it appears to them necessary for the public safety or for preventing cattle or horses from entering upon that railway require the Corporation to erect and maintain gates across that railway at each side of the road at any level crossing of a public carriage road and any private road and also may authorise the Corporation to remove subject to such conditions as the Board of Trade may prescribe any gates erected under this section and the Corporation shall observe such conditions. Provisions
as to cross-
ing of road
on the level.

[Ch. cv.] *Glasgow Water Order Confirmation* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915.

(2) Where gates are erected and maintained in accordance with this section the following provisions shall apply:—

- (A) The Corporation shall unless otherwise permitted by the Board of Trade in writing employ a proper person to open and close such gates on either side of the level crossing:
- (B) Such gates shall be kept constantly closed across the said Railway No. 2 except during the time when engines carriages or trucks passing along that railway shall have occasion to cross the road and shall be of such dimensions and so constructed as when closed across that railway to sufficiently fence in the same:
- (c) The drivers or conductors of any engines carriages or trucks passing along the said Railway No. 2 or other person whose office or duty it may be to open or close the said gates shall cause the same to be closed as soon as such engines carriages or trucks shall have passed through the same.

As to
fencing.

16. Where Railway No. 2 by this Order authorised passes through any fence suitable cattle guards or other suitable contrivances shall be erected across such railway to make good any gaps made in the fences and to prevent the straying of cattle or sheep but such railway shall not be otherwise fenced so as permanently to sever any land through which it passes.

Level cross-
ings without
gates.

17. With respect to every level crossing of a public carriage road other than a level crossing where gates are erected and maintained in accordance with the foregoing provisions of this Order the following provisions shall apply (that is to say):—

- (A) At each of two points one three hundred yards along the Railway No. 2 by this Order authorised in one direction from the level crossing and the other three hundred yards along that railway in the other direction from the level crossing there shall be erected and maintained a white post standing five feet above ground and bearing upon it and so as to be plainly legible by the driver of an engine approaching the level crossing a figure indicating the number of miles an hour which is fixed under the provisions of this Order as the maximum rate of speed of a train or engine approaching and within a distance of three hundred yards from the level crossing:

- (B) At each of two points one fifty yards or thereabouts along the road in one direction from the point of crossing and the other fifty yards or thereabouts along the road in the other direction from the point of crossing there shall be erected and maintained by the Corporation a notice board cautioning the public to beware of the trains. A.D. 1915.

18. The Corporation shall not run any train or engine upon Railways Nos. 1 and 2 by this Order authorised at a rate of speed—
Speed on railways.

- (A) Exceeding at any time fifteen miles an hour ;
(B) Exceeding five miles an hour when such train or engine is within the distance of three hundred yards from a level crossing over a public road where no gates are erected and maintained across the railway ;
(c) Exceeding any less maximum speed fixed by the Board of Trade for any part of such railways where that Board consider such further restrictions necessary for public safety.

19. The engines carriages wagons or trucks to be used on Railways Nos. 1 and 2 by this Order authorised may be worked by animal or mechanical power or partly by one and partly by another of such powers :
Motive power,

Provided that in the event of carriages wagons or trucks being moved by electrical power the use of such power shall be subject to the provisions of this Order and of any regulations to be prescribed by the Board of Trade which regulations shall contain such provisions as the said Board may think necessary for securing to the public all reasonable protection against danger arising from the use under this Order of electrical power on such railways :

Provided also that in such event the Corporation shall work the said railways and use electrical power for the purposes of the said railways in such manner as to prevent any interference with telegraphic communication by means of any telegraphic line belonging to or used by the Postmaster-General.

20. Railways Nos. 1 and 2 by this Order authorised shall be used exclusively for the purposes of and in connection with the works authorised by this Order Provided that within one year after the completion of such works the Corporation shall discontinue to use and shall abandon such railways.
User and discontinuance of railways.

[Ch. cv.] *Glasgow Water Order Confirmation* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915. 21. No passengers other than officers servants and workmen of the Corporation or of their contractors shall be conveyed on the Railways Nos. 1 and 2 by this Order authorised and no goods minerals or merchandise other than required in connection with the works of the Corporation shall be carried thereon.

Railways not to be used for passenger traffic.

22. The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any streets or roads of the works authorised by this Order and of any discharge-pipes telephone or telegraph posts wires conductors or apparatus which the Corporation may and which they are hereby authorised to lay down or erect for the purposes of the water undertaking.

Application of Waterworks Clauses Act 1847 to aqueducts discharge-pipes and telephones.

23. No telephone or telegraph posts wires conductors or apparatus erected laid down made or maintained under the authority of this Order shall be used for transmitting telegrams which are within the exclusive privilege conferred on the Postmaster-General by the Telegraph Act 1869.

For protection of Postmaster-General.

24. Subject to the provisions of this Order the Corporation may collect impound take use divert and appropriate for the purposes of the water undertaking the waters of the River Turk the Finglas Water and all springs streams and waters flowing into the same above the dam or embankment (Work No. 1) by this Order authorised and all such springs streams and waters as may be intercepted by the works by this Order authorised.

Power to take waters.

25. For preserving the purity and preventing the fouling of the water in or flowing into any of the water works by this Order authorised above the dam or embankment (Work No. 1) by this Order authorised (all of which works are hereinafter in this section comprehended and referred to in the expression "the water works") or in or flowing into any stream communicating with any of the water works the following provisions shall have effect:—

Prevention of fouling of water.

(1) The Corporation may appoint one or more officers to be inspectors for the purposes of this section (and such officers are hereinafter referred to as "the inspector"):

(2) The inspector may enter upon any lands adjacent to any of the water works or any such streams the

sewage drainage or refuse from which lands he may suspect of flowing into or otherwise directly or indirectly fouling or being likely to foul any of the waters in or flowing into any of such water works or streams : A.D. 1915.

- (3) If the inspector find that such sewage drainage or refuse causes or is likely to cause such fouling he shall report thereon to the Corporation :
- (4) The Corporation may give notice to the owner or occupier of such lands to provide within such reasonable time as they may specify all such drains cesspools receptacles and other appliances as they may deem necessary for the prevention or removal of such fouling :
- (5) If within the period specified in such notice such owner or occupier fail to provide such drains cesspools receptacles and other appliances the Corporation may on giving not less than three nor more than fourteen days' notice to such owner or occupier enter upon such lands doing as little damage as may be and provide such drains cesspools receptacles and other appliances and recover the expense thereof from such owner or occupier :
- (6) If any such owner or occupier feel aggrieved by the giving of any such last-mentioned notice he may within seven days after the service of any such notice appeal to the sheriff whose decision either as of first instance or reviewing the judgment of his substitute shall be final :
- (7) The Corporation and any such owner or occupier may enter into agreements with respect to the providing of any such drains cesspools receptacles and other appliances and the defraying of the expense thereof :
- (8) The powers and provisions of this section shall be in addition to and not in substitution for or derogation of any existing powers and provisions for guarding against fouling such waters.

26. The Corporation shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this Order or some other Order or Act of Parliament. Limiting powers of Corporation to abstract water.

[Ch. cv.] *Glasgow Water Order Confirmation* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915.

Accommoda-
tion for
workmen
employed on
construction
of works.

27.—(1) The Corporation shall erect fit up and maintain or provide—

(A) Such huts or buildings for the accommodation of the workmen employed in and about the construction of the works authorised by this Order ;

(B) Such hospital accommodation for the treatment of cases of sickness or accident among such workmen including accommodation for dealing with infectious diseases ;

as shall be reasonably necessary having regard to the accommodation available in the neighbourhood of or conveniently accessible from the said works and shall provide and maintain proper and sufficient sanitary accommodation in connection with every such building and hospital.

(2) The Corporation shall pay all reasonable costs and expenses incurred in respect of the medical and surgical treatment of any workman employed on the construction of the said works who is treated in any hospital accommodation provided by them except in so far as such costs and expenses are payable under the provisions of the National Insurance Act 1911 or any Act amending the same or otherwise.

(3) The medical officer of health of the local authority of the district in which the works authorised by this Order are situated (in this section called “the local authority”) shall be entitled at any time to enter into and inspect and examine any accommodation afforded under this section in order to ascertain whether overcrowding exists therein and whether proper and sufficient sanitary arrangements are provided.

(4) The Corporation shall give such officer all facilities and information which he requires for the purpose of the performance of his duties including the right to enter upon the said works and any person obstructing such officer in the performance of his duty under this section shall be liable on summary conviction to a fine not exceeding forty shillings.

(5) If at any time it appears to the local authority that the Corporation have failed to afford or maintain accommodation in accordance with subsection (1) of this section the Corporation shall afford and maintain such accommodation as the local authority may require Provided that if within fourteen days after the receipt of notice of any requirement of the local

authority under this subsection the Corporation give notice to the local authority that they dispute the reasonableness of any such requirement the difference shall be determined by the Local Government Board for Scotland (in this section referred to as "the Board") on the application of either of the parties and the Board may make such requirements (if any) in variation of the requirements of the local authority as they may think fit and the requirements of the Board shall be final and binding on both parties Provided that if it appears to the Board at any time that sufficient provision for the afore-said purposes is not made the Board shall have power to require the Corporation to make provision or additional provision therefor to the satisfaction of the Board For the purposes of this section the Board shall have the same powers of holding inquiries and of requiring reports to be made by local authorities and their officials as they have under the Public Health (Scotland) Act 1897 for the purposes of that Act and the provisions of the said Act relating to such inquiries and reports shall apply accordingly. A.D. 1915.

(6) If the Corporation fail to afford and maintain accommodation in accordance with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and to a further daily penalty not exceeding five pounds for every day on which the offence is continued after conviction and such penalties may be recovered by the local authority.

(7) Any expenses incurred by the local authority in carrying out the provisions of this section shall be repaid to the local authority by the Corporation and shall be recoverable as a debt due from the Corporation to the local authority.

(8) The Corporation shall pay to the Board any expenses incurred by the Board under this section including a sum not exceeding three guineas a day for the services of any inspector in connection with any local inquiry or investigation which they may consider necessary in the exercise of their powers under subsection (5) of this section and the expenses of any witnesses cited by the inspector.

28. The works by this Order authorised shall be completed within ten years after the passing of the Act confirming this Order and on the expiration of that period the powers by this Order granted to the Corporation for executing the said works Period for completion of works.

[Ch. cv.] *Glasgow Water Order Confirmation* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915. shall cease except as to so much thereof as shall then be completed Provided that the Corporation may on the lands and wayleaves acquired by them under the powers of this Order at any time extend enlarge alter renew or remove any of their works and plant and in the case of the aqueduct (Work No. 2) by this Order authorised construct additional aqueducts as and when occasion may require in the line of the wayleave to be acquired by the Corporation for the purposes of the said aqueduct (Work No. 2).

New works to form part of water undertaking.

29. The works to be constructed under the authority of this Order shall be deemed part of the water undertaking.

Repair of aqueducts &c. and temporary discharge of water into streams.

30.—(1) For the purpose of constructing enlarging extending repairing cleansing or examining the aqueducts reservoirs and other waterworks forming part of the water undertaking the Corporation may cause the water in such works or any of them to be discharged temporarily into any available stream or watercourse.

(2) In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by the exercise of such power the amount of compensation to be settled in default of agreement by an arbiter to be agreed on or failing agreement to be nominated by the Board of Trade on the application of either party.

As to compensation water for River Teith.

31.—(1) Before the Corporation shall be entitled to appropriate take or use for the purposes of supply any water of the River Turk collected in the impounding reservoir by this Order authorised they shall (subject to the provisions of this Order) commence to discharge and thenceforth for ever discharge in a regular uniform and continuous flow throughout the twenty-four hours of every day out of Loch Venacher into the River Teith a quantity of water (hereinafter referred to as "additional compensation water") not less than eight hundred thousand cubic feet in addition to the compensation water provided for by section 59 (Regulating supply of water to the River Teith) of the Act of 1855 and section 26 (For the protection of the owners of salmon fishings) of the Act of 1885.

(2) The preceding subsection of this section shall not apply during the first filling of the said reservoir but during that

[5 & 6 GEO. 5.] *Glasgow Water Order Confirmation* [Ch. cv.]
Act, 1915.

period the Corporation shall not collect or impound any of the water of the said River Turk whenever a less quantity of water than that prescribed by the section of this Order of which the marginal note is "As to compensation water for River Turk" shall be passing down that river immediately below the outlet of the said reservoir. A.D. 1915.

(3) Section 61 (Commissioners to erect and maintain gauges) section 62 (Inspection by landowners of gauges) and section 63 (For repair by landowners of gauges) of the Act of 1855 shall so far as applicable extend and apply to the additional compensation water.

(4) The provisions of this section shall be accepted and taken by all persons interested in the Rivers Teith and Forth as full compensation for all water which the Corporation may or can at any time divert collect impound or appropriate by means of the works by this Order authorised.

32.—(1) Before the Corporation shall be entitled to appropriate take or use for the purposes of supply any water of the River Turk collected in the impounding reservoir by this Order authorised they shall (subject to the provisions of this Order) commence to discharge and thenceforth for ever discharge in a regular uniform and continuous flow throughout the twenty-four hours of every day out of the said reservoir into the River Turk at a point therein situated not more than one hundred and sixty-seven yards below the foot of the dam of the said reservoir a quantity of water (hereinafter called "the compensation water") amounting to one million six hundred thousand cubic feet. As to compensation water for River Turk.

(2) The preceding subsection of this section shall not apply during the first filling of the said reservoir but during that period the Corporation shall not collect or impound any of the water of the said River Turk whenever a less quantity of water than one million six hundred thousand cubic feet per day shall be passing down that river immediately below the outlet of the said reservoir.

(3) Section 61 (Commissioners to erect and maintain gauges) section 62 (Inspection by landowners of gauges) and section 63 (For repair by landowners of gauges) of the Act of 1855 shall so far as applicable extend and apply to the compensation water.

[Ch. cv.] *Glasgow Water Order Confirmation* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915.

(4) The provisions of this section shall be accepted and taken by all persons interested in the River Turk as full compensation for all water which the Corporation may or can at any time divert collect impound or appropriate by means of the works by this Order authorised.

Borrowing
powers.

33. The Corporation may borrow for the purpose of carrying out the powers conferred upon them by the Water Acts and by this Order any sum of money not exceeding four hundred thousand pounds in addition to the sum of four million three hundred thousand pounds authorised to be borrowed by the Water Acts and they may again borrow any sums which may have been repaid by them otherwise than by the application of money received for lands and properties sold by them and by sinking fund provided by the Water Acts and this Order and any moneys so borrowed by them shall be deemed to have been borrowed under the powers and for the purposes of the Water Acts and this Order and shall form part of the moneys authorised to be borrowed under the Water Acts and the maximum sum which may be borrowed under the Water Acts is hereby increased accordingly.

Restriction
on exercise
of borrow-
ing powers
during war.

34. Notwithstanding anything in this Order the Corporation shall not under the powers of this Order borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Sinking
fund.

35. The Corporation shall annually set apart as a sinking fund and pay into the loans fund provided by the Glasgow Loans Acts 1883 to 1914 not less than one-sixtieth of the amount from time to time borrowed by them for the purposes of this Order and not paid off by other means than such sinking fund and they shall apply such sinking fund in paying off the principal sums so borrowed Provided that the provisions of section 23 (Provision as to future sinking fund) of the Glasgow Water Act 1912 shall apply to the moneys borrowed for the purposes of this Order.

PART III.

LANDS.

Power to
acquire
lands.

36. Subject to the provisions and for the purposes of this Order the Corporation may enter upon take and use all or any

[5 & 6 GEO. 5.] *Glasgow Water Order Confirmation* [Ch. cv.]
Act, 1915.

of the lands delineated on the deposited plans and described in the deposited books of reference. A.D. 1915.

37. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of five years from the passing of the Act confirming this Order. Period for compulsory purchase.

38. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Corporation any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges or feu duties so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively. Servitudes &c. by agreement.

39.—(1) The Corporation may in lieu of acquiring any lands for the purposes of— Acquisition of servitudes only for certain works.

(A) The works (other than the Railways Nos. 1 and 2) by this Order authorised where the same are intended to be constructed underground acquire such servitudes only; and

(B) The Railways Nos. 1 and 2 by this Order authorised acquire such temporary servitudes only;

in such lands as they may require for such purposes and may give notice to treat in respect of such servitudes describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such servitudes as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Corporation have acquired servitudes only under the provisions of this section and under the provisions of the section of this Order whereof the marginal note is "For protection of Earl of Moray" the Corporation shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such servitudes have the same rights to use and cultivate the said lands at all times as if the Act confirming this Order had not been passed.

[Ch. cv.] *Glasgow Water Order Confirmation* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915.
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(3) Nothing herein contained shall authorise the Corporation to acquire by compulsion any such servitude or wayleave in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of a servitude or wayleave only and every notice to treat for the acquisition of a servitude or wayleave shall be endorsed with notice of this proviso but this proviso shall not apply in regard to so much of the aqueduct by this Order authorised as shall be in tunnel and at a depth of not less than forty feet from the surface of the ground.

Owners may
be required
to sell parts
only of pro-
perty.

40. Whereas in the construction of the works by this Order authorised or otherwise in exercise of the powers of this Order it may happen that portions only of the lands houses or other buildings or manufactories shown on the deposited plans may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the owners of and other persons interested in the lands houses or other buildings or manufactories described in the schedule to this Order and whereof parts only are required for the purposes of this Order may if such portions can in the opinion of the arbiter to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Corporation the portions only of the properties so required without the Corporation being obliged or compellable to purchase the whole or any greater portion thereof the Corporation paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other persons interested therein by severance or otherwise.

Additional
land.

41. The Corporation may for the purposes of this Order acquire or feu by agreement any quantity of land not exceeding in the whole twenty acres but nothing in this Order shall exempt the Corporation from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any lands acquired under the provisions of this section.

42.—(1) All cases of disputed compensation under this Order whereby the Corporation are entitled to acquire land compulsorily under the Lands Clauses Acts or of disputed compensation falling to be determined under the provisions of the Lands Clauses Acts shall notwithstanding anything in those Acts contained be determined by a single arbiter to be appointed by the parties or in case both parties do not concur in the appointment of a single arbiter it shall be in the power of either party to apply to the Secretary for Scotland to appoint a single arbiter to determine the compensation to be paid and it shall not be competent thereafter to have the same determined by arbiters oversmen sheriff or jury acting under the last-mentioned Acts The said arbiter upon appointment shall be deemed to be a sole arbiter within the meaning of the Lands Clauses Acts and the provisions of those Acts with regard to arbitration shall apply accordingly Provided that the arbiter shall notwithstanding anything in those Acts contained determine the amount of expenses in the arbitration and such determination shall be final The remuneration of the said arbiter shall failing agreement be fixed by the Secretary for Scotland The expression "land" in this section includes water and any right or servitude to or over land or water.

A.D. 1915.
Compensation to be settled by single arbiter.

(2) The arbiter shall if any question of law arises in the course of an arbitration under this section have power at the request of either party to state a case for the opinion of the Court of Session and the said court shall determine such question.

43. The tribunal to whom any question of disputed purchase-money or compensation under this Order in respect of land taken compulsorily or otherwise is referred shall if so required by the Corporation award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Corporation by the claimant giving sufficient particulars and in sufficient time to enable the Corporation to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Corporation have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant:

Costs of arbitration in certain cases.

Provided that the sheriff may permit any claimant after seven days' notice in writing to the Corporation to amend the

[Ch. cv.] *Glasgow Water Order Confirmation* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915. — statement of the claim delivered by him to the Corporation in case of discovery of any error or mistake therein or for any other reasonable cause (such error mistake or cause to be established to the satisfaction of the sheriff after hearing the Corporation if they object to the amendment) and such amendment shall be subject to such terms enabling the Corporation to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to the sheriff may seem just and proper under all the circumstances of the case:

Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation (Scotland) Act 1845 either contained or was endorsed with a notice of the effect of this section.

PART IV.

MISCELLANEOUS.

Alteration of
roads &c.
temporarily.

44. For the purposes and during the construction of the works by this Order authorised and in maintaining the same and subject to the provisions of this Order the Corporation may temporarily use break up or cross over or under alter or stop up any streets highways roads lanes paths quays bridges railways tramways passages sewers drains watercourses mill lades or mill dams sluices gas pipes and water pipes and electric or telephonic apparatus in any of the lands shown on the deposited plans and specified in the deposited books of reference which they may find it expedient for any of those purposes so to interfere with but they shall provide when possible a proper temporary substitute before interrupting the traffic on any such street highway road lane path quay bridge railway tramway or passage or the flow of water gas sewage or electricity or telephonic communication in any such sewer drain watercourse mill lade mill dam sluice pipe or apparatus and shall make compensation to all persons injuriously affected by the exercise of the powers of this section:

Provided that nothing in this section contained shall extend to authorise any interference with—

(A) Any electric telegraphic or telephonic apparatus or other property of His Majesty's Postmaster-General; or

[5 & 6 GEO. 5.] *Glasgow Water Order Confirmation* [Ch. cv.]
Act, 1915.

(B) Any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section. A.D. 1915.

45. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Corporation to take use or in any manner interfere with any land heritages or other subjects or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods without the consent in writing of the Commissioners of Woods on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners are hereby authorised to give). Crown rights.

46. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Order or otherwise in relation thereto shall be paid by the Corporation and if paid out of borrowed moneys shall be repaid out of revenue within five years from the passing of the Act confirming this Order. Costs of Order.

The SCHEDULE referred to in the foregoing Order.

(Referred to in the section of this Order of which the marginal note is "Owners may be required to sell parts only of property.")

Parish.	County.	Numbers on deposited Plans.
Callander - -	Perth - -	1 2 3 5 to 82 and 151 to 154.

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